COMMONWEALTH OF VIRGINIA
INDIVIDUAL STAFF PETITION & DECLARATION OF SUPPORT

For the protection of psychiatric hospital patients, independent investigation, and fair institutional accountability

Directed to: Governor of Virginia; Attorney General of Virginia; Office of the State Inspector General; Virginia Behavioral Health Commission and appropriate General Assembly committees; and appropriate independent disability-rights organizations.

Scope: Western State Hospital (WSH), Staunton, Virginia, and consideration of comparable safeguards throughout Virginia state psychiatric hospitals.

I. Purpose and request

I, the individual undersigned, petition for an independent, evidence-based examination of patient safety, suspected abuse or neglect, retaliation, concealment or failure to report serious misconduct, and the effectiveness of existing oversight and complaint processes. Persons receiving psychiatric care, including people with mental disabilities, deserve safety, dignity, meaningful access to complaints and advocacy, and protection against harm. Staff acting in good faith likewise deserve a safe means of reporting concerns.

This petition seeks investigation and reform; it does not assert that every hospital or employee has committed misconduct, nor that any unproven allegation is true.

II. Measures I support

1. Independent investigation and audits. Independent examination of credible complaints, incident reports, alleged abuse or neglect, retaliation, staff reporting practices, and administrative responses; periodic follow-up audits with appropriate public findings.

2. Patient safety and rights. Protection against abuse, neglect, coercion, intimidation and retaliation; accessible complaint procedures, meaningful communication with advocates, and prompt responses to urgent safety concerns.

3. Independent confidential reporting. Clearly identified channels outside hospital management for staff and patients, including independent investigators and disability-rights advocates, with safeguards against retaliation and unauthorized disclosure.

4. Preservation and review of evidence. Preservation of relevant records, incident reports, electronic logs, surveillance footage and communications where lawful, with privacy protections and fair opportunities to respond.

5. Staff cooperation and fair accountability. Encouragement to report suspected wrongdoing promptly and truthfully; impartial review of possible witnessing, concealment, or failures to report; referrals for substantiated disciplinary, licensing, civil, or criminal concerns as legally appropriate.

6. Investigative integrity measures. Consideration of legally authorized employee integrity screening, including polygraph examinations only where lawful, suitable, and subject to employment-law and due-process safeguards; legislative review if broader authority is proposed. Polygraphs alone are not proof of misconduct.

7. Oversight reform and transparency. Independent assessment of whether oversight bodies, grievance procedures, human-rights reviews, and supervisory processes effectively protect patients; corrective-action plans, measurable deadlines and nonconfidential progress reporting.

8. Written governmental response. Acknowledgment of the petition, identification of jurisdiction and any referrals, explanation of available investigative or legislative measures, and a written response on actions taken or declined.

III. Legal and procedural safeguards

The requested measures should be assessed under applicable Virginia and federal law, including Virginia Code § 37.2-400 and Virginia human-rights regulations at 12VAC35-115. Any investigation must respect due process, employment protections, applicable whistleblower law, patient confidentiality, and the rights of people who are accused. Nothing in this petition demands automatic dismissal, collective punishment, compulsory testing without legal authority, or disclosure of protected health information.

The phrase “Protection and Purge,” if used in public advocacy, means only lawful identification, correction, and removal of substantiated misconduct or unsafe practices—not a presumption of guilt.

IV. Independent declaration of support — one signer

By signing below, I voluntarily declare that I have reviewed this petition and support the requests and safeguards stated in Sections I–III. I ask the recipients to consider these measures and to protect patients and good-faith reporters. My signature expresses support for investigation and reform; it is **not** an allegation against any identified person, a sworn statement that I personally witnessed wrongdoing, a waiver of rights, or a claim to speak for WSH or any other employee.

Printed name: _____

Position or affiliation (optional): _____

Signature: _____ Date: _____

Preferred contact (optional): _____

Hospital / facility (optional): _____

V. Instructions for individual submission

Each employee may independently sign and send a copy of this entire petition and declaration to appropriate government oversight offices or advocates. A signer may instead submit an unsigned statement of support. The initiative website provides public contacts and an editable email declaration: **https://adamcaseywsh.github.io/wsh-staff-petition/** (confirm that the website is live before relying on it).

For a private report involving specific events or patient information, use the appropriate official confidential reporting or intake process rather than a group advocacy email. Do not include patient diagnoses, treatment details, or identifying records in a public petition or publicly shared message. Reporting misconduct does not automatically provide immunity from liability; employees with concerns about their own conduct may seek independent legal advice.

Organizer: adam nicholas: casey — Independent WSH Staff Petition Initiative. No endorsement by WSH, DBHDS, or any Citizens Council is claimed.

INDIVIDUAL DIGITAL SUPPORT DECLARATION

Western State Hospital Staff Petition — one employee, one declaration

I voluntarily confirm that I have read the accompanying two-page Petition for Patient Protection and Independent Accountability, including all eight requested protections and their legal safeguards.

I support independent protection of people with mental disabilities receiving care at Western State Hospital and other Virginia state psychiatric hospitals. I ask officials to consider and respond to the petition.

duct,

Contact email (optional)

Typing a name is an electronic expression of support, not a certificate-based digital signature.
Sign only for yourself. Do not include patient-identifying information. Do not publish signed copies.

Download the completed PDF and email it privately with the full petition to the chosen oversight office.

Some PDF viewers do not save forms reliably. Use Adobe Acrobat Reader or another form-capable viewer.